

24STCV21522 24STCV21522

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV21522 Hearing Date: August 14, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV21522

LANDRUS

CLARK vs SOHAIL ZAVERI, et al.

August

14, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR ORDER GRANTING LEAVE TO FILE FIRST AMENDED COMPLAINT.

RULING:

The Court grants the Motion.

Plaintiff may serve and
file the proposed amended complaint, as a separate document, within 10 days.

Plaintiff to give notice.

I.

BACKGROUND

On August 23, 2024, LANDRUS
CLARK (Plaintiff) filed a form Complaint against SOHAIL ZAVERI and
DOORDASH, INC. (Defendants), identifying a Motor Vehicle Cause of Action.

Plaintiff alleges that Defendants'
negligence caused an accident at the intersection of La Brea Avenue, Stocker
Street and Overhill Drive, in Los Angeles.

On July 28, 2026, Plaintiff
filed the Motion for Leave to file the proposed form, First Amended Complaint
(FAC), based on the deposition, taken on July 21, 2026, of Defendant's Person
Most Knowledgeable, supporting vicarious and direct liability. The FAC lists
the Claims:

1.

Motor Vehicle Negligence; and

2.

General Negligence.

DOORDASH, INC. (Defendant)
opposes, based on arguments such as delay and an attempt to defeat the pending Motion
for Summary Judgment. Alternatively, Defendant advocates a limited leave to
amend only as to completely new issues not currently alleged in the FAC and
narrowing the scope of a revised Motion for Summary Judgment.

II.

LEGAL STANDARD

Code of Civil Procedure

section 473, subdivision (a)(1) allows courts “in furtherance of justice” to “allow a party to amend any pleading ... in any ... respect”, which is reviewed for abuse of discretion and requires courts to consider factors including the conduct of moving parties and belated presentations of amendments without a showing of excuse. (*Emerald Bay Cmty. Assn. v. Golden Eagle Ins. Corp.* (2005) 130 Cal.App.4th 1078, 1097.)

Absent some kind of disadvantage from delay in seeking to amend a complaint, such as faded memories or lost evidence, delay causing the need to defend, in and of itself, is not a valid reason to deny amendment. (*Jo Redland Trust, U.A.D. 4-6-05 v. CIT Bank, N.A.* (2023) 92 Cal.App.5th 142, 168.)

III.

ANALYSIS

Plaintiff moves for Leave to file the First Amended Complaint (FAC) (Motion, Exhibit C), arguing the following grounds:

1.

On May 18, 2026, Defendant filed its Motion for Summary Judgment, disclaiming vicarious liability.

2.

The Deposition of Defendant’s PMK provides evidence of extensive control over drivers, in support of vicarious and direct liability.

3.

The amendment includes additional theories of direct and statutory negligence.

Defendant opposes, based on arguments including (1) delay in alleging Negligence, (2) delay in taking the Deposition, (3) an attempt to defeat the pending Motion for Summary Judgment, (4) a futile amendment where evidence shows that Defendant did not own or entrust the subject vehicle and other nonexistent support for statutory theories, and (5) prejudice to Defendant in filing a revised Motion for Summary Judgment.

First, cognizable delay

is measured after knowledge of facts, not the time between filing the action and conducting discovery. In considering whether there was unjustified delay as to a motion for leave to file an amended pleading, the court should consider whether the party, “was not diligent in offering the amendment after knowledge of the facts....” (Solit v.

Tokai Bank (1999) 68 Cal.App.4th 1435, 1448.) (Underscoring added.)

Second, adding legal

theories to existing facts is not an authorized reason to deny leave. “ ‘[I]t is irrelevant that new legal theories are introduced as long as the proposed amendments ‘relate to the same general set of facts.’ [Citation.] ’ ” (Atkinson

v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.) That evidence of an added theory of liability would become admissible against opposing parties, after leave to amend a complaint, does not constitute the kind of prejudice supporting denial. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490.)

Third, Defendant's Motion

for Summary Judgment, addressing vicarious liability, constitutes a basis to amend. A newly raised argument or court ruling may be justification for delay in moving for leave to amend. (Cf. Foundation for Taxpayer and Consumer Rights v. Nextel Communications, Inc. (2006) 143 Cal.App.4th 131, 136 [“The argument fails because ... no reason to amend its complaint until Nextel sought to apply Proposition 64 to this case.”].)

Fourth, Defendant's evidence

of futility is not considered regarding leave to amend. Courts generally do not consider the validity of proposed amendments to a pleading. (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047; Atkinson v. Elk Corp. (2006) 109 Cal.App.4th 739, 760 [“the better course of action would have been to allow ... [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings.”].) Generally, courts liberally grant motions for leave to amend, but do have discretion to deny where, in all probability, the amendment would be futile. (E.g., Foroudi v. Aerospace Corp. (2020) 57 Cal.App.5th 992, 1000–1001.)

Fifth,

the prescribed result for the Motion for Summary Judgment is for Defendant to file another one, addressing the amended complaint. Summary

judgment would be improperly granted when addressed to a pleading superseded by an amended one. (State Compensation Ins. Fund v. Superior

Court (2010) 184 Cal.App.4th 1124, 1130-1131; Hejmadi v. AMFAC, Inc. (1988) 202 Cal.App.3d 525, 536-537 [courts

should require a new or renewal motion for summary judgment or adjudication

after allowing leave to amend the operative pleading]; Perry v. Atkinson (1987) 195 Cal.App.3d 14, 17-18 [error to grant

summary adjudication addressing superseded complaint after amended complaint

filed].)

IV.

CONCLUSION

The Court grants the Motion,

for reasons set forth herein.